

PUBLIC-SOURCE LEGAL PROOF PACKET

Profit Actors, Student Data, Digital Exposure, and Child-Protection Duties in Compulsory K-12

Prepared from public internet sources only | June 17, 2026

Core sentence: The violation begins where compulsory school authority gives a profit actor access to children without proving educational necessity, direct public control, noncommercial use, refusal rights, deletion, safety, and protected-harm response.

1. Scope and Use

Source fact: This packet uses public legal, regulator, education, student-privacy, and child-safety sources. It does not rely on internal district documents or user-provided files.

Interpretive finding: The goal is to prove the legal gates and build a public-source evidence checklist. District-specific proof comes later, after a public source identifies the actor, product, program, contract, app list, or policy.

Working theory: Profit actors do not have to say the harmful endpoint out loud. The legally relevant question is whether the school-authorized pathway gave them access to student data, identity, image, work, behavior, attention, audience, or online interaction without satisfying the legal gates that protect children in a compulsory education setting.

2. Six-Part Proof Checklist

Proof lane	What must be shown	Public-source evidence
1. Actor	Name the vendor, platform, program, app, curriculum provider, marketing partner, CTE partner, media partner, or ed-tech service.	Public board agenda; app list; approved-software page; vendor privacy policy; contract registry; CSPA/SDPC record.
2. School authority	Show the school assigned, required, approved, funded, promoted, integrated, or officially hosted the tool or pathway.	Course description; syllabus; teacher assignment; district webpage; board minutes; purchasing record; CTE pathway page.
3. Child asset	Identify the child resource touched: data, identity, image, work, voice, portfolio, behavior, search activity, interaction, account, attention, audience, or content.	Privacy policy; data dictionary; terms; product page; screenshots; sample assignments; account permissions.
4. Commercial function	Look for advertising, profiling, analytics, product improvement, AI/model training, affiliates, marketing, resale, engagement optimization, or audience growth.	Privacy policy; cookie/pixel disclosures; subprocessors; terms of service; FTC enforcement examples.
5. Missing protection	Find absent or weak direct control, refusal alternative, deletion, takedown, retention limit, safety path, owner, stop authority, protected-harm code, aggregation, or abatement.	Contract; privacy agreement; acceptable-use policy; CIPA policy; Title IX/bullying form; complaint routing.
6. Legal gate	Match facts to FERPA, COPPA/FTC, SOPIPA, Ed. Code 49073.1, CIPA, PPRa, Title IX, or state data/security law.	Law text; agency guidance; enforcement order; regulator complaint; district policy; public contracts.

3. Legal Gates and Violation Theories

Legal gate	Source fact	Violation theory
FERPA - school official exception	Outside contractors may receive education records only if they perform a school function, are under direct school control, are limited in use/redisclosure, and fit the LEA annual notice. [S1]	Vendor is not under direct control; use/redisclosure exceeds the educational purpose; annual notice or contract does not match the actual data flow.
FTC/COPPA - ed-tech use limits	FTC states students must not be required to submit to unnecessary data collection to do schoolwork; school-authorized child data may be used only to provide the requested online education service, not commercial marketing, advertising, or unrelated commercial purposes; retention must not exceed necessity. [S2]	The product collects more than needed, uses child data for advertising/marketing/profiling/product speculation, or retains data beyond the school purpose.
FTC/COPPA - 2025 amendments	FTC finalized COPPA changes requiring opt-in consent for third-party advertising disclosures and emphasizing limits on sharing and monetizing children's data. [S3]	Child data is shared or monetized in advertising or third-party contexts without a clear lawful consent and purpose structure.
FTC enforcement - Edmodo	FTC alleged Edmodo collected student personal information, used it for ads, relied on schools/teachers for consent without adequate information, retained data too long, and was ordered not to use children's information for non-educational purposes such as advertising or building user profiles. [S4]	This is public proof that commercial misuse of children's school-authorized information is an enforcement category, not a theoretical concern.
FTC enforcement - Chegg	FTC finalized an order requiring Chegg to improve data security, limit data collection/retention, and provide access/deletion after alleged weak security exposed personal information. [S5]	Data-security failure is a separate proof lane when a vendor stores student or user data and fails reasonable safeguards.
California SOPIPA - BPC 22584	SOPIPA bars K-12 online operators from targeted advertising based on student information, amassing profiles except for K-12 purposes, selling pupil information, and improper disclosure; it also requires reasonable security and deletion on school request. [S6]	A K-12 operator that uses school-acquired student information for ads, profiles, sale, improper disclosure, weak security, or refusal to delete crosses a statutory line.
California Ed. Code 49073.1	LEA digital-storage/software contracts must keep records under LEA control, limit uses to the contract, provide review/correction, ensure security/confidentiality, notify on unauthorized disclosure, certify post-contract non-retention, address FERPA, and bar targeted advertising. [S7]	A bad or missing contract can itself prove the failure before any later injury is shown.
CIPA / E-rate	CIPA requires covered schools to use internet-safety policies and technology protection measures, monitor minors' online activity, and educate minors about appropriate online behavior including social networking, chat rooms, cyberbullying awareness and response. [S8], [S9]	The school cannot credibly argue online exposure risk was unforeseeable; it was already inside the funding and internet-safety framework.
PPRA	PPRA governs surveys, analyses, or evaluations involving protected areas including mental/psychological problems, sex behavior or attitudes, illegal/self-incriminating behavior, family relationships, privileged relationships, religion, and income. [S10]	SEL, mental-health, survey, career, or behavioral platforms that collect sensitive responses may trigger notice/consent/opt-out obligations.
Title IX / OCR harassment-bullying route	Title IX prohibits sex discrimination in federally funded education programs. OCR warns that misconduct treated as bullying may also trigger civil-rights duties and that failure to recognize discriminatory harassment can lead to inadequate	If a school-authorized digital/visibility pathway produces sex-based harassment, routing it only to bullying, discipline, counseling, or platform terms may be legally inadequate.

Legal gate	Source fact	Violation theory
	responses. [S11], [S12]	

4. Public Sources Showing the School-Authorized Operating Environment

Source fact: Perkins V is framed by the Department of Education as expanding opportunities for students to explore, choose, and follow CTE programs of study and career pathways to earn credentials of value. It also provides nearly \$1.4 billion annually for CTE programs for youth and adults. [S13]

Interpretive finding: The school is not passive: federal policy affirmatively authorizes career, market, credential, industry, and workforce-facing pathways inside public education.

Source fact: ISTE Student Standards state that students use digital tools to communicate visually and publish or present content that customizes the message and medium for intended audiences. [S14]

Interpretive finding: The public education pathway includes digital identity, audience awareness, publishing, presentation, collaboration, and platform-facing communication.

Source fact: California CTE Arts, Media, and Entertainment materials include work-based learning, pre-apprenticeships, youth apprenticeships, mentorships, and public-school career preparation in media/entertainment sectors. [S15]

Interpretive finding: This is where child content, image, voice, audience, portfolio, reputation, performance, and market-facing visibility must be protected at entry.

Source fact: CSPA states it provides a statewide agreement and searchable database of applications and vendors who have signed agreements with at least one LEA; SDPC states it provides registries, privacy tools, and common expectations between schools/districts and marketplace providers. [S16], [S17], [S18]

Interpretive finding: The public proof route does not require internal files first: vendor use, contracts, privacy agreements, and app inventories are often publicly disclosed or searchable through existing privacy infrastructure.

5. Public Sources Showing Foreseeable Child Harm Streams

Risk stream	Source fact	Interpretive finding
Early porn exposure	Common Sense Media reported that 73% of U.S. teen respondents had seen online pornography, 54% first saw it by age 13 or younger, 15% by age 10 or younger, and average first exposure was age 12. [S20], [S21]	Porn exposure is not merely an adult endpoint; it appears during compulsory-school years.
School-day/school-device overlap	Common Sense Media reported that a share of teens who had seen pornography had seen it during the school day, while attending school in person, or on school-owned devices. [S20]	The school cannot automatically externalize the porn/demand stream as private home conduct.
Male-side intentional demand	Common Sense Media reported that boys were more likely than girls to report intentional viewing and weekly use among intentional viewers. [S20]	The male-side pathway requires demand-formation analysis, not only offender management after harm appears.
Accidental/peer/social routing	eSafety reported that many young people's first encounters with online pornography are unintentional and occur through social media, unrelated websites, pornography websites, and communication from friends. [S22]	The first node is often exposure, feed routing, peer routing, or platform routing - not adult-like preference.
Public-health risk factors	CDC lists exposure to sexually explicit media, preference for impersonal sex, coercive sexual fantasies, hostility toward women, hyper-masculinity, and sexually aggressive peers among risk factors for sexual-violence perpetration. [S23]	The male-side risk factors are publicly named; the missing school-side question is how childhood conditions intersect with those risk factors.
Harmful sexual behavior	CSA Centre states older children displaying harmful sexual behavior are mostly boys and that there may sometimes be a link between viewing online pornography and subsequent	When the pathway produces conduct, the child is often shifted into a harmful-behavior/offender frame.

Risk stream	Source fact	Interpretive finding
Online context mechanics	harmful sexual behaviors. [S24] CSA Centre states online spaces provide constant and instant response, anonymity, likes/fans/followers, and disinhibition; online sexual harm can be severe and lifelong. [S25]	This supports the proof that audience, metrics, visibility, and interaction systems are not neutral for children.

6. How to Build the Case Without Internal Documents

Public source	What to pull	What it proves
District website	Approved apps; curriculum pages; CTE pathways; board agenda packets; contracts; privacy notices; media-release forms; acceptable-use policies.	Proves school authority, assignment, promotion, funding, and official adoption.
Vendor website	Privacy policy; terms; data-processing addendum; subprocessors; cookies; AI/model-training statements; advertising language; student-data page.	Proves child asset, data flow, commercial function, retention, deletion, and third-party sharing.
CSPA / SDPC	Vendor agreements, participating LEAs, app inventory, statewide or national privacy agreement participation.	Proves that data-privacy contracting is expected and that a missing agreement is meaningful.
Regulator/enforcement pages	FTC, OCR, FCC, state attorney general, state education agency, Student Privacy Policy Office.	Proves legal gate and enforcement category.
Public app permissions	App store permissions, browser extensions, cookie scans, login/account requirements, permissions requested on school devices.	Proves actual technical access and tracking potential.
Published research / public-health sources	Common Sense, eSafety, CDC, CSA Centre, child-safety reports.	Proves foreseeability of online/porn/demand/sexual-harm risk in child development.

7. Violation Indicators to Flag

- The platform is required or assigned, but the vendor privacy policy contains advertising, marketing, affiliates, profiling, behavioral analytics, product improvement, AI/model training, or broad third-party sharing language.
- The school calls the product educational, but the contract does not show direct school control over data use, maintenance, redisclosure, retention, deletion, and security.
- The product collects persistent identifiers, location data, device data, images, voice, video, social interactions, behavioral data, chat content, portfolio work, or pupil-generated content without a narrow school-purpose explanation.
- The district has an approved-app list but no accessible data privacy agreement, no contract, no vendor addendum, or no evidence of review for COPPA/FERPA/SOPIPA compliance.
- Students cannot refuse, use a noncommercial alternative, avoid public posting, opt out of audience-facing work, or withdraw content without educational penalty.
- The privacy policy permits indefinite retention, speculative future use, vague deidentified data use, product marketing, or use of student content to demonstrate product effectiveness.
- The district has CIPA/acceptable-use language, but online exposure incidents are routed only to discipline or student misuse without a safety/abatement review of the authorized pathway.
- Sex-based harassment or sexualized online harm is routed to bullying/peer conflict/discipline/counseling only, without protected-status coding, owner, stop authority, aggregation, or abatement.

8. Public-Records Request Target List

Use this as a public-records request menu. It does not require confidential student records. It requests governance, contracts, app lists, and safety architecture.

1. All contracts, master service agreements, data privacy agreements, memoranda of understanding, and amendments for the named vendor/product/program.
2. The district approved-app list and any product vetting rubric used for FERPA, COPPA, SOPIPA, PPRA, CIPA, Title IX, data retention, advertising, profiling, and third-party sharing.
3. Records showing whether the vendor is designated as a FERPA school official and the basis for legitimate educational interest.
4. Records showing direct district control over the vendor's use, maintenance, redisclosure, retention, deletion, and security of education records.
5. Any data inventory or data map describing student data collected by the vendor, including device data, persistent identifiers, behavioral data, images, video, audio, pupil-generated content, and interaction data.
6. Records showing parent notice, consent, opt-out, refusal alternatives, noncommercial alternatives, and options to transfer or delete pupil-generated content.
7. Records showing whether the vendor uses data for advertising, marketing, analytics, product improvement, AI/model training, algorithm development, engagement optimization, or demonstration of product effectiveness.
8. CIPA certifications, internet-safety policies, filtering policies, online-behavior/cyberbullying curriculum records, and school-device incident logs involving pornography, social media, chat rooms, sextortion, harassment, or sexually explicit material.
9. Title IX/harassment/bullying intake forms and coding fields used when digital, sexualized, sex-based, or online harassment is reported through a school-authorized platform or school device.
10. Any board presentations, contracts, or program materials describing student voice, digital media, branding, entrepreneurship, content creation, influencer/social-media skills, audience metrics, public portfolios, or work-based learning with external partners.

9. Clean Allegation Language

Legal frame: This is not proved by saying market actors are bad. It is proved by showing that a school-authorized commercial actor collected, exposed, profiled, advertised to, monetized, retained, or failed to protect children outside a legally controlled educational purpose.

Removal frame: No commercial actor belongs inside compulsory K-12 unless the school can prove educational necessity, direct public control, noncommercial use, data minimization, refusal alternative, deletion, security, stop authority, protected-harm coding, aggregation, and abatement at entry.

Demand/supply frame: They do not have to instruct the endpoint. The proof is authorized pathway plus foreseeable conversion plus abandonment: visibility and audience formation for children, data and engagement value for market actors, and no protective bridge when harm appears.

Public-source frame: The architecture can be built from public sources: law text, regulator guidance, enforcement orders, district app lists, board records, privacy policies, CTE/digital-media pages, and child-safety research.

10. Source Appendix

ID	Source	URL
S1	U.S. Department of Education, Protecting Student Privacy: FERPA school-official exception	https://studentprivacy.ed.gov/faq/are-there-any-limitations-what-education-records-may-be-disclosed-community-based-organization
S2	Federal Trade Commission, Policy Statement on Education Technology and COPPA	https://www.ftc.gov/system/files/ftc_gov/pdf/Policy%20Statement%20of%20the%20Federal%20Trade%20Commission%20on%20Education%20Technology.pdf
S3	FTC, 2025 COPPA changes limiting companies ability to monetize kids data	https://www.ftc.gov/news-events/news/press-releases/2025/01/ftc-finalizes-changes-childrens-privacy-rule-limiting-companies-ability-monetize-kids-data
S4	FTC, Edmodo COPPA enforcement: children personal information for advertising and outsourced compliance	https://www.ftc.gov/news-events/news/press-releases/2023/05/ftc-says-ed-tech-provider-edmodo-unlawfully-used-childrens-personal

ID	Source	URL
S5	FTC, Chegg data security enforcement	information-advertising https://www.ftc.gov/news-events/news/press-releases/2023/01/ftc-finalizes-order-ed-tech-provider-chegg-lax-security-exposed-student-data
S6	California Business and Professions Code section 22584 (SOPIPA text via Justia)	https://law.justia.com/codes/california/code-bpc/division-8/chapter-22-2/section-22584/
S7	California Education Code section 49073.1 (official California Legislative Information)	https://leginfo.ca.gov/faces/codes_displaySection.xhtml?lawCode=EDC&sectionNum=49073.1
S8	47 CFR section 54.520, Children's Internet Protection Act rules	https://www.law.cornell.edu/cfr/text/47/54.520
S9	FCC, Children's Internet Protection Act guide	https://www.fcc.gov/consumers/guides/childrens-internet-protection-act
S10	U.S. Department of Education, Protection of Pupil Rights Amendment FAQ	https://studentprivacy.ed.gov/faq/what-protection-pupil-rights-amendment-ppra
S11	U.S. Department of Education, Title IX overview	https://www.ed.gov/laws-and-policy/civil-rights-laws/title-ix-and-sex-discrimination/sex-discrimination-overview-of-law
S12	U.S. Department of Education OCR, Dear Colleague Letter: Harassment and Bullying summary	https://www.ed.gov/laws-and-policy/civil-rights-laws/harassment-bullying-and-retaliation/dear-colleague-letter-harassment-and-bullying-background-summary-and-fast-facts
S13	U.S. Department of Education, Perkins V	https://www.ed.gov/adult-programs/adult-education-laws-and-policy/perkins-v
S14	ISTE Student Standards	https://iste.org/standards/students
S15	California Department of Education, Arts, Media, and Entertainment Industry Sector	https://www.cde.ca.gov/ci/ct/gi/ameindustrysector.asp
S16	California IT in Education, California Student Privacy Alliance	https://www.cite.org/cspa
S17	Student Data Privacy Consortium, Resource Registry and NDPA	https://privacy.a4l.org/
S18	Student Data Privacy Consortium, National Data Privacy Agreement	https://privacy.a4l.org/national-dpa/
S19	Palo Alto Unified School District, Student Data Privacy	https://www.pausd.org/school-life/education-technology/sdp
S20	Common Sense Media, Teens and Pornography report	https://www.common Sense Media.org/sites/default/files/research/report/2022-teens-and-pornography-final-web.pdf
S21	Common Sense Media press release on Teens and Pornography	https://www.common Sense Media.org/press-releases/new-report-reveals-truths-about-how-teens-engage-with-pornography
S22	Australian eSafety Commissioner, Accidental, unsolicited and in your face	https://www.esafety.gov.au/sites/default/files/2023-08/Accidental-unsolicited-and-in-your-face.pdf
S23	CDC, Sexual Violence Risk and Protective Factors	https://www.cdc.gov/sexual-violence/risk-factors/index.html
S24	CSA Centre, Children and young people who display harmful sexual behaviour	https://www.csacentre.org.uk/research-resources/key-messages/harmful-sexual-behaviour/
S25	CSA Centre, Harmful sexual behaviour in online contexts	https://www.csacentre.org.uk/research-resources/key-messages/harmful-sexual-behaviour-in-online-contexts/
S26	Reuters, school districts sue social-media companies over addiction claims	https://www.reuters.com/world/us/youtube-snap-settle-school-districts-social-media-addiction-claims-2026-05-16/